

- 1) The February 2, 2026, trial date is vacated.
- 2) Plaintiff must file his proposed First Amended Complaint within 5 court days of entry of this order.
- 3) Defendants' response thereto shall be filed per Code.

The Parties are ORDERED to appear at a Case Management Conference via Zoom on April 21, 2026 at 8:30 a.m. to discuss the scope of re-opening discovery and resetting of trial. The Parties shall meet and confer and propose mutually available trial dates to the Court in a Joint Case Management Conference statement filed at least five (5) calendar days before the CMC.

4. 9:00 AM CASE NUMBER: C24-00151
CASE NAME: BLACKHAWK OFFICE RE INVESTORS, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. BLACKHAWK COMMERCIAL OWNERS ASSOCIATION, A CALIFORNIA MUTUAL BENEFIT COMMON INTE

***HEARING ON MOTION IN RE: QUASH SUBPOENA**

FILED BY: RAMANUJAN GROUP, LLC, A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

The hearing on Defendant Ramanujan Group LLC's Motion to Quash Subpoena issued to Preferred Bank, or in the Alternative, for a Protective Order, calendared for January 21, 2026 is **vacated** from the Court's calendar and referred to the Discovery Referee, Hon. Elizabeth Feffer (Ret.) for hearing and for a report and recommendation. The Parties are ordered to provide copies of the Motion and responses to the Discovery Referee forthwith. No appearance is required on January 21, 2026.

5. 9:00 AM CASE NUMBER: C24-01855

CASE NAME: MARION KULLBERG VS. TAYLOR KNIGHT

***HEARING ON MOTION IN RE: PROTECTIVE ORDER**

FILED BY: KULLBERG, MARION

TENTATIVE RULING:

Summary

The following discovery motion is scheduled to be heard on by the Court on January 21, 2026 at 9:00 a.m. in Department 16:

1. Plaintiff's Motion for Protective Order re Deposition of Minor Stella Elwin filed on September 25, 2025.

The Parties have also scheduled hearings on the following discovery motions in Department 16 at 9:00 a.m. on the following dates:

2. April 22, 2026: Defendant Corbin Knight's Motion for Protective Order re Deposition of Corbin Knight filed on December 10, 2025
3. May 6, 2026: Plaintiff's Motion to Compel Further Deposition of Thomas Knight and for sanctions filed on January 2, 2026;
4. May 6, 2026: Defendant Corbin Knight's Motion to Compel Further Testimony from Marion Kullberg and Stella Elwin and for sanctions filed on January 6, 2026.

The Court vacates all four (4) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all subsequent discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling.

Background

This action arises out of motor vehicle accident that occurred on March 4, 2024 in an unincorporated portion of Contra Costa County. Plaintiff Marion Kullberg alleges that she and her minor daughter, Stella Elwin, were injured in a major head-on collision motor vehicle accident caused by Defendant Taylor Knight, who was involved in a speed contest with her brother Corbin Knight. The Knight Defendants dispute liability. The four motions on calendar, along with the history of multiple challenges to the pleadings, suggests to the Court that the parties are unable to meaningfully resolve multiple discovery disputes informally.

Analyses

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. “Motions to compel should be considered a last resort when trying to prepare a case for trial.” California Civil Discovery Practice (4th ed Cal CEB) §15.32.C.

Additionally, “trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes.”

California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before filing multiple motions against each other.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

Here, the Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions, the nature of underlying legal issues and the history of vigorous pleading litigation, requires discovery reference pursuant to Cal. Code of Civ. Proc. Section 639(a)(5), which states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

The Court finds that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court makes this finding on the grounds that there are four (4) pending discovery motions on calendar in the matter, scheduled for January 21, 2026, April 22, 2026 and May 6, 2026. These motions and opposition filed to date consists of 591 pages. The Court further finds that, based on the intensity of the disputes, and the history of vigorous litigation about the pleadings in this case, Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

Ruling

The Court appoints a Discovery Referee. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on January 21, April 22, and May 6, 2026, and any and all subsequently filed discovery motions. The hearing on these discovery motions are **vacated** from Department 16's calendar and are referred for further hearing to the Discovery Referee for a report and recommendation.
2. By no later than January 28, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to be appointed by the Court along with the proposed referee's *curriculum vitae* and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee, the Parties each shall submit the name of **one** proposed Discovery Referee and fee schedule along with his/her/their *curriculum vitae* to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by close of business on February 2, 2026. The Court will then select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
3. No party has established an economic inability to pay a pro rata share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
4. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.

5. The Clerk of the Court shall vacate all of Plaintiff's Discovery Motions calendared for January 21, April 22, and May 6, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.

6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

6. 9:00 AM CASE NUMBER: C24-01926
CASE NAME: PETER HO VS. CITY OF CITRUS HEIGHTS
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CITY OF CITRUS HEIGHTS

TENTATIVE RULING:

Before the Court is a demurrer by the City of Citrus Heights to Plaintiff's first amended complaint. For the reasons set forth, the hearing on the demurrer is **continued** to **9:00 a.m. on February 25, 2026**.

The notice of demurrer and demurrer states that it is based on a request for judicial notice. The memorandum of points and authorities also refers to documents subject to the request for judicial notice. However, the request for judicial notice was not filed with the demurrer, nor does the Court have a proof of service on the demurrer pleadings indicating that a copy of the request for judicial notice was served on Plaintiff. The Court therefore continues the hearing to give the City the opportunity to file and serve the request for judicial notice, and for Plaintiff to file any supplemental opposition based on the documents included in the request for judicial notice.

The City shall file and serve the request for judicial notice in support of its demurrer **by January 28, 2026**. Plaintiff shall file and serve any supplemental opposition, not to exceed 15 pages, addressing the matters subject to the request for judicial notice **by February 13, 2026**.

7. 9:00 AM CASE NUMBER: C24-01992
CASE NAME: DOROTHY CAMON VS. CALIFORNIA STATEWIDE COMMUNITIES DEVELOPMENT AUTHORITY
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CALIFORNIA STATEWIDE COMMUNITIES DEVELOPMENT AUTHORITY

TENTATIVE RULING:

The Court continues the hearing, *sua sponte*, on this Motion to February 18, 2026 at 9:00 a.m.. No appearance is required on January 21, 2026.

8. 9:00 AM CASE NUMBER: C24-02905
CASE NAME: JOSEPH SIMONI VS. AIDEN KEETON
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: KEETON, AIDEN MICHAEL

TENTATIVE RULING:

The Court continues the hearing on this Motion, *sua sponte*, to February 4, 2026 at 9:00 a.m.. No appearance is required on January 21, 2026.